

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

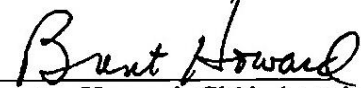
(Date)

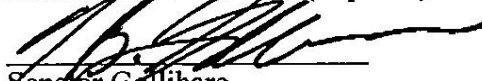
I move to amend House Bill No. 1860 by substituting the attached floor substitute (Request # 3663) for the title, enacting clause, and entire body of the measure.

Submitted by:

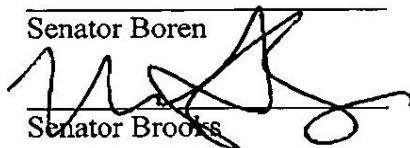

Senator Gollihare

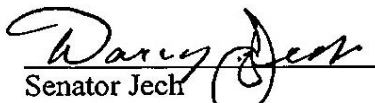
I hereby grant permission for the floor substitute to be adopted.

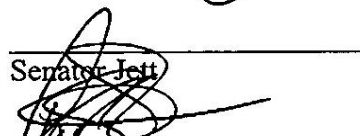

Senator Howard, Chair (required)


Senator Gollihare

Senator Boren


Senator Brooks


Senator Jech


Senator Jett

Senator Rosino

Senator Standridge

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor
Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

Gollihare-TEK-FS-HB1860
3/12/2026 9:54 AM

(Floor Amendments Only)

Date and Time Filed:

3-17-26 9:33am jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 1860

By: Roberts of the House

and

Gollihare of the Senate

FLOOR SUBSTITUTE

An Act relating to confidential records; prescribing right of victims to confidentiality of certain autopsy and crime scene photographs; prohibiting public access to certain photographs submitted to the Pardon and Parole Board; amending 51 O.S. 2021, Section 24A.5, as last amended by Section 2, Chapter 404, O.S.L. 2025 (51 O.S. Supp. 2025, Section 24A.5), which relates to the Oklahoma Open Records Act; adding certain victim photographs to list of confidential records; updating statutory references; updating statutory language; prohibiting certain victim photographs submitted to the Board from being presented to the public; requiring parties to submit two separate clemency hearing packets to the Board; clarifying contents for each packet; allowing Board to seal certain records upon majority vote; requiring Board submission of certain packet to Governor; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 142A-15 of Title 21, unless there is created a duplication in numbering, reads as follows:

1 Victims and the families of victims shall have the right to
2 confidentiality of autopsy and crime scene photographs in clemency
3 hearings. Such photographs submitted to the Pardon and Parole Board
4 for clemency hearing purposes shall be submitted in a separate
5 hearing packet as provided in Section 3 of this act and shall not be
6 made available to the public unless the victim or family of a victim
7 consents to public disclosure.

8 SECTION 2. AMENDATORY 51 O.S. 2021, Section 24A.5, as
9 last amended by Section 2, Chapter 404, O.S.L. 2025 (51 O.S. Supp.
10 2025, Section 24A.5), is amended to read as follows:

11 Section 24A.5. All records of public bodies and public
12 officials shall be open to any person for inspection, copying, or
13 mechanical reproduction during regular business hours; provided:

14 1. The Oklahoma Open Records Act, Sections 24A.1 through 24A.34
15 of this title, does not apply to records specifically required by
16 law to be kept confidential including:

17 a. records protected by a state evidentiary privilege
18 such as the attorney-client privilege, the work
19 product immunity from discovery and the identity of
20 informer privileges,

21 b. records of what transpired during meetings of a public
22 body lawfully closed to the public such as executive
23 sessions authorized under the Oklahoma Open Meeting
24 Act,

- c. personal information within driver records as defined by the Driver's Privacy Protection Act of 1994, 18 U.S.C., Sections 2721 through 2725,
- d. information in the files of the Board of Medicolegal Investigations obtained pursuant to Sections 940 and 941 of Title 63 of the Oklahoma Statutes that may be hearsay, preliminary unsubstantiated investigation-related findings, or confidential medical information,
- e. any test forms, question banks and answer keys developed for state licensure examinations, but specifically excluding test preparation materials or study guides,
- f. last names, addresses, Social Security numbers or tax identification numbers, and proof of identification submitted to the Oklahoma Lottery Commission by persons claiming a lottery prize,
- g. unless public disclosure is required by other laws or regulations, vehicle movement records of the Oklahoma Transportation Authority obtained in connection with the Authority's electronic toll collection system,
- h. personal financial information, credit reports, or other financial data obtained by or submitted to a public body for the purpose of evaluating ~~credit~~ worthiness creditworthiness, obtaining a license, or

- 1 permit, or for the purpose of becoming qualified to
2 contract with a public body,
- 3 i. any digital audio/video recordings of the toll
4 collection and safeguarding activities of the Oklahoma
5 Transportation Authority,
- 6 j. any personal information provided by a guest at any
7 facility owned or operated by the Oklahoma Tourism and
8 Recreation Department to obtain any service at the
9 facility or by a purchaser of a product sold by or
10 through the Oklahoma Tourism and Recreation
11 Department,
- 12 k. a United States Department of Defense Form 214 (DD
13 Form 214) filed with a county clerk, including any DD
14 Form 214 filed before July 1, 2002,
- 15 l. except as provided for in Section 2-110 of Title 47 of
16 the Oklahoma Statutes:
- 17 (1) any record in connection with a Motor Vehicle
18 Report issued by the Department of Public Safety,
19 as prescribed in Section 6-117 of Title 47 of the
20 Oklahoma Statutes, or
- 21 (2) personal information within driver records, as
22 defined by the Driver's Privacy Protection Act of
23 1994, 18 U.S.C., Sections 2721 through 2725,
- 24

1 which are stored and maintained by the Department
2 of Public Safety,

3 m. any portion of any document or information provided to
4 an agency or entity of the state or a political
5 subdivision to obtain licensure under the laws of this
6 state or a political subdivision that contains an
7 applicant's personal address, personal phone number,
8 personal email address, any government-issued
9 identification numbers, or other contact information;
10 provided, however, lists of persons licensed, the
11 existence of a license of a person, or a business or
12 commercial address, or other business or commercial
13 information disclosable under state law submitted with
14 an application for licensure shall be public record,
15 unless the business or commercial address is the same
16 as the applicant's personal address, except when the
17 applicant permits in writing the disclosure of the
18 address,

19 n. an investigative file obtained during an investigation
20 conducted by the State Department of Health into
21 violations of the Long-Term Care Administrator
22 Licensing Act under Title 63 of the Oklahoma Statutes,
23 ~~or~~

1 o. documents, evidence, materials, records, reports,
2 complaints, or other information in the possession or
3 control of the Attorney General or Insurance
4 Department pertaining to an evaluation, examination,
5 investigation, or review made pursuant to the
6 provisions of the Patient's Right to Pharmacy Choice
7 Act, the Pharmacy Audit Integrity Act, or Sections 357
8 through 360 of Title 59 of the Oklahoma Statutes, or
9 p. autopsy and crime scene photographs of victims
10 submitted to the Pardon and Parole Board for the
11 purpose of a clemency hearing;

12 2. All Social Security numbers included in a record may be
13 confidential regardless of the person's status as a public employee
14 or private individual and may be redacted or deleted prior to
15 release of the record by the public body;

16 3. Any reasonably segregable portion of a record containing
17 exempt material shall be provided after deletion of the exempt
18 portions; provided, however, the Department of Public Safety shall
19 not be required to assemble for the requesting person specific
20 information, in any format, from driving records relating to any
21 person whose name and date of birth or whose driver license number
22 is not furnished by the requesting person.

23 The Oklahoma State Bureau of Investigation shall not be required
24 to assemble for the requesting person any criminal history records

1 relating to persons whose names, dates of birth, and other
2 identifying information required by the Oklahoma State Bureau of
3 Investigation pursuant to administrative rule are not furnished by
4 the requesting person;

5 4. Any request for a record which contains individual records
6 of persons, and the cost of copying, reproducing or certifying each
7 individual record is otherwise prescribed by state law, the cost may
8 be assessed for each individual record, or portion thereof requested
9 as prescribed by state law. Otherwise, a public body may charge a
10 fee only for recovery of the reasonable, direct costs of record
11 copying, or mechanical reproduction. Notwithstanding any state or
12 local provision to the contrary, in no instance shall the record
13 copying fee exceed twenty-five cents (\$0.25) per page for records
14 having the dimensions of eight and one-half (8 1/2) by fourteen (14)
15 inches or smaller, or a maximum of One Dollar (\$1.00) per copied
16 page for a certified copy. However, if the request:

- 17 a. is solely for commercial purpose, or
18 b. would clearly cause excessive disruption of the
19 essential functions of the public body,
20 then the public body may charge a reasonable fee to recover the
21 direct cost of record search and copying; however, publication in a
22 newspaper or broadcast by news media for news purposes shall not
23 constitute a resale or use of a record for trade or commercial
24 purpose and charges for providing copies of electronic data to the

1 news media for a news purpose shall not exceed the direct cost of
2 making the copy. The fee charged by the Department of Public Safety
3 for a copy in a computerized format of a record of the Department
4 shall not exceed the direct cost of making the copy unless the fee
5 for the record is otherwise set by law. A public body may require
6 advance payment of the estimated fees authorized under this section
7 when the estimated cost exceeds Seventy-five Dollars (\$75.00) or if
8 the requestor has outstanding fees from previous requests. Any
9 portion of an advance payment that exceeds the costs of responding
10 to the request shall be returned to the requestor.

11 Any public body establishing fees under the Oklahoma Open
12 Records Act shall post a written schedule of the fees at its
13 principal office and with the county clerk.

14 In no case shall a search fee be charged when the release of
15 records is in the public interest, including, but not limited to,
16 release to the news media, scholars, authors and taxpayers seeking
17 to determine whether those entrusted with the affairs of the
18 government are honestly, faithfully, and competently performing
19 their duties as public servants.

20 The fees shall not be used for the purpose of discouraging
21 requests for information or as obstacles to disclosure of requested
22 information;

23 5. The land description tract index of all recorded instruments
24 concerning real property required to be kept by the county clerk of

1 any county shall be available for inspection or copying in
2 accordance with the provisions of the Oklahoma Open Records Act;
3 provided, however, the index shall not be copied or mechanically
4 reproduced for the purpose of sale of the information;

5 6. A public body must provide prompt, reasonable access to its
6 records but may establish reasonable procedures which protect the
7 integrity and organization of its records and to prevent excessive
8 disruptions of its essential functions. A delay in providing access
9 to records shall be limited solely to the time required for
10 preparing the requested documents and the avoidance of excessive
11 disruptions of the public body's essential functions. In no event
12 may production of a current request for records be unreasonably
13 delayed until after completion of a prior records request that will
14 take substantially longer than the current request. Any public body
15 which makes the requested records available on the Internet shall
16 meet the obligation of providing prompt, reasonable access to its
17 records as required by this paragraph;

18 7. A public body may require a requestor to complete a records
19 request form. If a records request does not describe the requested
20 records with reasonable specificity, a public body may ask the
21 requestor to clarify the request. To have reasonable specificity, a
22 request shall:

23

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- a. specify a general time frame within which the requested records would have been created or transmitted,
- b. seek identifiable records, rather than general information without any qualifiers or other specifications, and
- c. include search terms that are sufficiently specific to assist the public body in identifying the requested records.

If a public body has engaged with the requestor to seek the information needed to fulfill the request and to identify the records sought by the requestor, including providing the requestor with general topics or a specific list of records related to the request, the request may be denied if it is still not reasonably specific; and

8. A public body shall designate certain persons who are authorized to release records of the public body for inspection, copying, or mechanical reproduction. At least one person shall be available at all times to release records during the regular business hours of the public body.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 332.22 of Title 57, unless there is created a duplication in numbering, reads as follows:

1 A. During a Pardon and Parole Board clemency hearing, autopsy
2 photographs and victim images contained in the crime scene
3 photographs shall not be presented or displayed to the public.

4 B. Two separate clemency packets shall be submitted by the
5 parties to the administrative office of the Board on or before a
6 date set by the Chair, one to be made available to the public and
7 one to be kept confidential by the Board. The packet made available
8 to the public shall not include autopsy photographs and victim
9 images contained in the crime scene photographs.

10 C. The Board shall receive all photographs contained in the
11 clemency hearing packet submitted by the parties, including autopsy
12 photographs and victim images contained in the crime scene
13 photographs. The Board shall seal from public view any submission
14 included in the public clemency hearing packet that would infringe
15 on the confidentiality or privacy of the victim as determined by a
16 majority vote of the Board.

17 D. The Board shall provide the clemency hearing packet that
18 includes the autopsy photographs and victim images contained in the
19 crime scene photographs to the Governor.

20 SECTION 4. This act shall become effective November 1, 2026.

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22 60-2-3663 TEK 3/17/2026 10:00:34 AM
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